

25STCV19191 25STCV19191

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Case Number: 25STCV19191 Hearing Date: July 15, 2026 Dept: 617

Dept.

617

Date:

7-15-26

Case

#: 25STCV19191

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Raymond Handling Solutions, Inc. and The Raymond Corporation

RESPONDING

PARTY: Plaintiff, Jessica Shoup

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

SUMMARY

OF ACTION

Plaintiff

Jessica Shoup formerly worked as a Marketing Supervisor for Defendants Raymond Handling Solutions, Inc. and The Raymond Corporation. She alleges that beginning in 2020, she reported to HR and others about stress and anxiety she was experiencing due to intense workload demands. On February 24, 2023, Plaintiff went on medical leave. She alleges that after requesting extension of her leave, Defendants terminated her. Plaintiff further claims a hostile work environment created by Defendants' former Executive Vice President, Scott Stowers, through his invitation of employees to strip clubs and inappropriate relationships with subordinates. On September 12, 2025, Plaintiff filed a First Amended Complaint, asserting multiple claims under the Fair Employment and Housing Act (FEHA).

RULING: Sustained.

Request for Judicial Notice:
Granted.

The Court takes judicial notice of the existence of the First Amended Complaint filed in the instant action. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.)

Defendants demur to each cause of action in Plaintiff's First Amended Complaint, arguing that Plaintiff fails to sufficiently state her claims. Plaintiff opposes the demurrer, maintaining the sufficiency of the allegations in support of her causes of action. Defendants' demurrer is sustained without leave to amend as to the causes of action for retaliation, discrimination, failure to provide reasonable accommodation, and failure to engage in the interactive process. The demurrer is sustained with leave to amend as to the hostile work environment and failure to prevent retaliation, discrimination, and/or harassment claims.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (Postley

v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

First

Cause of Action: Retaliation

Defendants

argue that Plaintiff's retaliation claim fails because she merely alleges that she notified Defendants of her alleged mental disability.

"[T]o

establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.) Protected activity may be in the form of opposing practices that violate the FEHA or filing, testifying, or assisting in proceedings under the FEHA. (Gov. Code, § 12940, subd. (h).) However, notifying an employer of one's medical status is not a protected activity. (Moore v. Regents of Univ. of Cal. (2016) 248 Cal.App.4th 216, 247.)

The

demurrer to the retaliation cause of action is sustained without leave to amend. While Plaintiff does allege that she requested a reasonable accommodation, which constitutes protected activity (Gov. Code, § 12940, subd. (m)(2)), she does not allege she has a disability covered under the FEHA. As Defendants argue, Plaintiff only alleges work-related stress stemming from "intense

workload demands.” [FAC ¶¶ 11-12, 14.] Work-related stress is not a disability under the FEHA. (Higgins-Williams v. Sutter Medical Foundation (2015) 237 Cal.App.4th 78, 84 [“An employee’s inability to work under a particular supervisor because of anxiety and stress related to the supervisor’s standard oversight of the employee’s job performance does not constitute a disability under FEHA”]; Striplin v. Shamrock Foods Co., Inc. (9th Cir. 2018) 731 Fed.Appx. 618, 620.) Thus, Defendants could not have retaliated against Plaintiff under the FEHA for requesting an accommodation she was not entitled to. Defendants’ demurrer to this claim is therefore sustained without leave to amend.

Second,

Fifth, and Sixth Causes of Action: Discrimination, Failure to Provide Reasonable Accommodation, and Failure to Engage in Interactive Process

Defendants’

demurrer to Plaintiff’s causes of action for discrimination, failure to provide reasonable accommodation, and failure to engage in the interactive process is sustained without leave to amend. As explained above, Plaintiff does not, and cannot, allege a qualifying disability under the FEHA. These claims accordingly fail.

Third

Cause of Action: Hostile Work Environment

Defendants’

demurrer to Plaintiff’s hostile work environment claim is sustained with leave to amend. Plaintiff concedes in her opposition that, as pled, her hostile work environment claim is insufficient. [Opp. at p. 7.] She claims that she can plead additional facts regarding her “direct exposure to, and knowledge of,” the alleged sexual harassment by Stowers and the demeaning message it conveyed in the workplace. [Ibid.] Because these representations create a reasonable possibility that Plaintiff can sufficiently allege a hostile work environment claim, she is granted leave to amend.

Fourth

Cause of Action: Failure to Prevent Retaliation, Discrimination, and/or Harassment

Given

Plaintiff's failure to allege a qualified disability under the FEHA and the conceded insufficiency of her hostile work environment claim, Defendants' demurrer to the failure to prevent cause of action is sustained. Because, as discussed above, there is a reasonable possibility that Plaintiff can allege an actionable hostile environment sexual harassment claim on amendment, she is also granted leave to amend her failure to prevent claim.

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendants

to give notice.